



CHAPTER 45.

An Act to make provision for the acquisition of a site for public offices in Westminster, to amend the Westminster Hospital Act, 1913, and for purposes connected with the matters aforesaid.

[31st July 1947.]

WHEREAS it is expedient that the Minister of Works (hereafter in this Act referred to as "the Minister") should be empowered to acquire compulsorily, as a site for public offices, certain lands and buildings (hereafter in this Act referred to as "the said site") situated on the northern side of the Broad Sanctuary in the parish of St. Margaret in the city of Westminster, being the former site of Westminster Hospital, and to erect buildings on the said site :

And whereas by the Westminster Hospital Act, 1913, certain provisions and restrictions were made to apply to the said site and to any new building erected thereon :

And whereas it is expedient that certain of the said restrictions should cease to apply after the acquisition of the said site by the Minister :

And whereas a plan showing the said site to be acquired by the Minister under this Act, with a book of reference containing the names of the owners or reputed owners and of the occupier of the said site (there being no lessees) have been deposited with the clerk of the London County Council (which plan and book of reference are in this Act respectively referred to as "the deposited plan" and "the deposited book of reference") :

And whereas the objects aforesaid cannot be effected without the authority of Parliament :

Be it therefore enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows :—

Power to
acquire land.

1.—(1) Subject to the provisions of this Act, the Minister may, with the consent of the Treasury, acquire the said site, either by agreement or compulsorily, for the purposes of this Act.

(2) A person dealing with the Minister in respect of the said site shall not be bound or entitled to inquire whether the consent of the Treasury has been given to that dealing.

(3) The power to purchase land compulsorily under this Act shall cease on the expiration of three years from the passing of this Act.

Incorporation
of Lands
Clauses Acts.

2. The Lands Clauses Acts are, subject to the provisions of this Act, hereby incorporated with this Act with the following exceptions and modifications, that is to say :—

(a) in the construction of the Lands Clauses Acts as incorporated with this Act, this Act shall be deemed to be the special Act, and the Minister shall be deemed to be the promoter of the undertaking ;

(b) the following sections of the Lands Clauses Consolidation Act, 1845, that is to say, sections one hundred and twenty-seven to one hundred and thirty-two (which relate to sale of superfluous land), section one hundred and thirty-three (which relates to promoters making good deficiencies in land tax and rates) and sections one hundred and fifty and one hundred and fifty-one (which relate to access to the special Act), shall be excepted from incorporation with this Act ;

(c) at any time after notice to treat has been served, the Minister may, after giving not less than fourteen days' notice to the owners and occupier of the said site, enter on and take possession of the land specified in the notice without previous consent or compliance with sections eighty-four to ninety of the Lands Clauses Consolidation Act, 1845, but subject to the payment of the like compensation for the land of which possession is taken, and interest on the compensation awarded, as would have been payable if those provisions had been complied with.

8 & 9 Vict.
c. 18.

Compensation
in case of
recent
alterations.

3. In determining any question of disputed purchase money or compensation under this Act, no allowance shall be made on account of any improvement or alteration effected, or interest created, after the ninth day of December nineteen hundred and forty-six, which, in the opinion of the tribunal to whom the question is submitted, was not reasonably necessary or was

effected or created with a view to obtaining or increasing compensation.

4. The Minister or any person acting on his behalf may, at all reasonable times between ten o'clock in the forenoon and four o'clock in the afternoon after giving, on the first occasion twenty-four hours', and on subsequent occasions twelve hours' notice in writing to the owners and occupier thereof, enter on any part of the said site for the purpose of surveying or valuing the said site. Power to enter on lands for purpose of surveying.

5.—(1) It shall be lawful for the Minister, from time to time, upon, in, under, or over any part of the said site acquired by him to pull down and remove any existing buildings, structures or other works and to construct such other buildings, structures and works and do all such other things as, in his opinion, are necessary or expedient for the purpose of providing new buildings for public offices on the said site or of adapting the said site for use in connection with public offices and appropriating any part of the said site for that purpose. Power to erect buildings, etc.

(2) Paragraph (A) of subsection (1) of section seven of the Westminster Hospital Act, 1913, (which imposes certain restrictions as to the height and the building line of any new building erected on the said site) shall cease to have effect in relation to the northern boundary of the said site. 3 & 4 Geo. 5. c. cxiv.

(3) Without prejudice to the provisions of the last preceding subsection, the restrictions imposed by the said paragraph (A) on the height of a new building erected on the said site shall have effect only in relation to the outermost walls of any such building, the height of those walls being measured from pavement level to the top of the parapet, or to the top of the outermost wall, as the case may be.

(4) Section eight of the said Act of 1913 (which relates to the application of the London Building Acts) shall cease to apply to the said site and section thirteen thereof (which imposes certain restrictions on the use of the said site, subject to waiver by the Minister) shall cease to have effect.

(5) Subject to the provisions of subsections (2) to (4) of this section, the said Act of 1913 shall continue to apply in relation to the said site.

6. For the protection of the London Passenger Transport Board (in this section called "the Board"), the following provisions of this section shall, notwithstanding anything in this Act contained, have effect unless otherwise agreed between the Minister and the Board (that is to say):— For protection of the London Passenger Transport Board.

(1) In this section—

"the said works" means any works executed by the Minister under the powers of section five of this Act on any part

of the said site within twenty feet of the back of the retaining wall of the District Railway of the Board ;

“ the period of protection ” means the period commencing on such date as shall be certified in writing to the Minister and the Board by the architect employed by the Minister in such execution as the date of completion of the said works and terminating on the expiration of twenty years from the date so certified ;

“ the Railway ” means the said District Railway, and includes the tunnels thereof and works connected therewith.

(2) The Minister shall execute the said works in such a manner as to interfere as little as possible with the Railway.

(3) The said works shall be executed only according to plans, sections and specifications previously submitted to and approved by the Chief Engineer of the Board :

Provided that—

(i) such approval shall not be unreasonably withheld ; and

(ii) unless the Board, within twenty-eight days after the submission of such plans, sections and specifications, give notice in writing to the Minister objecting thereto or making any requirement with respect thereto, the said plans, sections and specifications shall be deemed to have been approved on behalf of the Board and the work may be proceeded with accordingly.

(4) If, at any time during the execution of the said works or during the period of protection, any injury is caused to the Railway by such execution or by the maintenance or failure of the said works, the Board may restore the Railway or the part or parts thereof which may be so injured to as good a state and condition as they were in before such injury was occasioned, and the Board may recover from the Minister the amount of the expense reasonably incurred by them in so doing.

(5) The said works shall be so executed and maintained that the traffic upon the Railway shall not be impeded or interfered with.

(6) The Minister and his officers and contractors shall at all times during the execution of the said works afford reasonable facilities for the watching and inspection (at the expense of the Board) of such execution by any person authorised in writing by the Board for the purpose and, if so required by any such officer or contractor, producing his authority.

(7) The Minister shall be responsible for and make good to the Board all costs, losses, damages and expenses which may be

occasioned to the Board or to the Railway or to the traffic thereon—

- (a) during the execution of the said works ; or
- (b) during the period of protection

by reason of such execution or by the maintenance or failure of the said works or by the acts or defaults of the Minister or of any persons in his employ or of his contractors, and the Minister shall effectually indemnify and hold harmless the Board from all claims and demands made upon or against them in respect of any matter arising during such execution or during the period of protection by reason of such execution, maintenance or failure or of any such act or default :

Provided that the said indemnity shall not apply to any such claim or demand of which the Board shall not have given to the Minister as soon as practicable notice of the making thereof and that no settlement or compromise of any such claim or demand shall be made except with the consent of the Minister.

(8) (a) If and whenever, during the execution of the said works or during the period of protection, any alteration or strengthening of the Railway is, in the opinion of the Board, rendered necessary by reason of such execution or by the maintenance or failure of the said works, the Board shall give the Minister twenty-eight days' notice (or in case of emergency such notice as may be reasonably practicable) before commencing to execute any such works of alteration or strengthening, and where or to such extent as such works are agreed between the Minister and the Board or (in default of agreement) determined by arbitration to be so rendered necessary as aforesaid, the reasonable costs and expenses of the Board of and incidental to such execution shall be paid by the Minister ;

(b) Upon the completion of any such works of alteration or strengthening as may be agreed or determined to be so rendered necessary as aforesaid, the Minister shall also pay to the Board such a sum as may be agreed between the Minister and the Board, or as (in default of agreement) shall be determined by arbitration, by way of compensation for and in satisfaction of all claims by the Board in respect of the additional expense (if any) of maintenance of the Railway arising from such alteration or strengthening.

(9) Any matter required by this section to be determined by arbitration and any other question or difference arising under this section between the Minister and the Board shall be referred to and determined by an arbitrator to be appointed in default of agreement by the President of the Institution of Civil Engineers on the application of either party (made after notice in writing to the other party), and the provisions of the Arbitration Acts, 1889 to 1934, shall apply to any such reference.

Correction of errors, etc., in deposited plan and book of reference.

7.—(1) If any omission, misstatement or wrong description is found to have been made in the deposited plan or the deposited book of reference in respect of any part of the said site or the owners or occupier thereof, the Minister, after giving ten days' notice to the owners and occupier of the said site, may apply to two justices having jurisdiction in the county of London for the correction thereof.

(2) If on any such application it appears to the justices that the omission, misstatement or wrong description arose from mistake, the justices shall certify the fact accordingly and shall in their certificate state the particulars of the omission or in what respect any matter is misstated or wrongly described.

(3) Any such certificate or a copy thereof shall be deposited with the clerk of the London County Council and thereupon the deposited plan and the deposited book of reference shall be deemed to be corrected according to the certificate, and it shall be lawful for the Minister to acquire the said site in accordance with the certificate.

(4) Any certificate or copy deposited under this section with the clerk of the London County Council shall be kept by him with the other documents to which it relates.

Penalty for obstructing Minister.

8. If any person wilfully obstructs any person acting under the authority of the Minister in the lawful exercise of the power vested in the Minister under this Act, he shall in respect of each offence be liable on summary conviction to a fine not exceeding five pounds.

Provisions as to expenses, etc., of the Minister.

9.—(1) Any expenses incurred by the Minister under this Act shall be defrayed out of moneys provided by Parliament.

15 & 16 Vict.
c. 28.

(2) The provisions of the Commissioners of Works Act, 1852, and any Act amending that Act, shall apply in the case of land acquired by the Minister under this Act in like manner as they apply in the case of land purchased by the Minister under that Act.

Short title.

10. This Act may be cited as the Public Offices (Site) Act, 1947.

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